

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202306118	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 06/21/2023 2:00 PM	Location of Incident: Livonia Avenue and Pennsylvania Avenue	18 Mo. SOL 12/21/2024	Precinct: 75
Date/Time CV Reported Wed, 06/21/2023 4:47 PM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/05/2023 2:52 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Henry Henriquez	08780	938657	075 PCT
2. PO Michael Gessner	18502	940186	075 PCT
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . PO Henry Henriquez	Force: Police Officer Henry Henriquez used physical force against § 87(2)(b)	A . Closed - Pending Litigation
B . PO Michael Gessner	Force: Police Officer Michael Gessner used physical force against § 87(2)(b)	B . Closed - Pending Litigation
C . An officer	Force: An officer used a chokehold against § 87(2)(b)	C . Closed - Pending Litigation

Truncation Case Summary

Search IAs: 1

Created by: Julissa Abreu on 07/06/2023

Remarks Performed a BADS search. Located Arrest report # § 87(2)(b) which is sealed. PO Gessner was the Arresting Officer. (See IA 5)

Contact complainant/victim IAs: 5

Contact: Reporting Non-Witness § 87(2)(b)

Created by: Owen Godshall on 07/14/2023

Remarks --Called § 87(2)(b) (1) at § 87(2)(b) Confirmed her contact information and the incident T/P/O. She also confirmed that she did not witness the incident herself. § 87(2)(b) indicated that the incident happened at the New Lots subway station, which is on the 3 line. § 87(2)(b) agreed to allow her sons to provide statements. § 87(2)(b)

When informed that § 87(2)(b)'s statement would be subject to subpoena, she stated that she would like to consult with his attorney first. She did not have the attorney's information available at the time of the call. She agreed to reach out to her attorney and call back by next week.

Contact: Reporting Non-Witness § 87(2)(b)

Created by: Owen Godshall on 07/24/2023

Remarks Called § 87(2)(b) (2) at § 87(2)(b) to follow up regarding interviews with her sons. Left a voicemail.

Contact: Reporting Non-Witness § 87(2)(b)

Created by: Owen Godshall on 07/31/2023

Remarks Called § 87(2)(b) (3) at § 87(2)(b) to follow up regarding interviews with her sons. Left a voicemail.

Contact: Reporting Non-Witness § 87(2)(b)

Created by: Owen Godshall on 08/02/2023

Remarks Called § 87(2)(b) (4) at § 87(2)(b) to follow up regarding interviews with her sons. Left a voicemail.

Contact: Reporting Non-Witness § 87(2)(b)

Created by: Owen Godshall on 08/04/2023

Remarks Called § 87(2)(b) (5) at § 87(2)(b) to follow up regarding interviews with her sons. Left a voicemail.

Letters/Correspondence IAs: 2

Document List:

1st please call to c/v/w letter to Reporting Non-Witness § 87(2)(b) Created 08-01-2023 by Owen Godshall

Final please call to c/v/w letter to Reporting Non-Witness § 87(2)(b) Created 08-07-2023 by Owen Godshall

Letters/Correspondence IA created by: Owen Godshall on 08/01/2023

Remarks Sent and emailed first please-call letter to § 87(2)(b)

Letters/Correspondence IA created by: Owen Godshall on 08/07/2023

Remarks Sent and emailed final please-call letter to § 87(2)(b)

Civilian Interview Scheduled IAs: 0

Civilian Interview Missed IAs: 0

Truncation Report Remarks:

On June 21, 2023, Sgt. Brian Lyons of the 75th Precinct reported this complaint to IAB on behalf of § 87(2)(b) who had filed a complaint on behalf of her son § 87(2)(b) who is a minor. On July 5, 2023, the complaint was forwarded to the CCRB via IAB log #2023-20099.

During a telephone call on July 14, 2023, § 87(2)(b) stated that § 87(2)(b)'s criminal case resulting from this incident was still ongoing § 87(2)(b). When informed that any statement he provided about the incident would be subject to subpoena, § 87(2)(b) asked to consult with § 87(2)(b)'s attorney before allowing him to be interviewed. She did not identify the attorney.

§ 87(2)(b) has not responded to subsequent contact attempts. On August 7, 2023, a search of the NYC Department of Correction's online inmate database showed that neither she nor § 87(2)(b) is currently incarcerated.

§ 87(2)(g)

§ 87(2)(g), it is recommended that this case be **closed pending litigation**.

Squad No.: 15

Investigator:	Owen Godshall	SI Owen Godshall	08/07/2023
	Signature	Print Title & Name	Date

Squad Leader:		IM Simon Wang	08/07/23
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date